Delta Dental Insurance Company

EVIDENCE OF COVERAGE

BENEFITS ASSOCIATION, INC.

DENTAL FOR EVERYONE
NEW IMMEDIATE COVERAGE
PPO + PREMIER PLAN

Group No: 22257

Effective Date: 01/01/2026

THIS IS A LIMITED BENEFIT CERTIFICATE
Please read the Certificate carefully.

Notice of Insured's Right to Return this Evidence of Coverage

You are permitted to return this Evidence of Coverage ("EOC") within ten (10) days of its delivery and to have the Premium paid for it refunded if after examination You are not satisfied with it for any reason. You may return this EOC to Us or to the Contractholder through whom it was purchased. It will be void from the beginning and the parties will be in the same position as if no EOC had been issued.

The Contract will remain in force unless otherwise terminated in accordance with its terms, until the first renewal date and for such further periods for which it is renewed. The Contract is renewable at Our option.

This EOC is non-participating with regard to paying dividends to Enrollees.

Underwritten and administered by:
Delta Dental Insurance Company
1130 Sanctuary Parkway
Alpharetta, GA 30009

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Introduction

This EOC provides information about Your Delta Dental PPO™ Plan ("Plan") provided by Delta Dental Insurance Company ("Company"), on behalf of itself, and its affiliated companies. To offer these Benefits, the Contractholder has entered into a Group Dental Insurance Contract with Us.

This document, including the Contract and any attachments, provides the terms and conditions of Your coverage. Read this document carefully for an explanation of Your coverage, including the *Definitions* section for any terms with special or technical meanings.

Terms such as "You," "Your" and "Yourself" means the individuals who are covered. "We," "Us" and "Our" refers to the Company or Our Third Party Administrator ("Administrator").

Identification ("ID") Card
ID cards are not required to receive dental services. However, when You receive dental services, Your Enrollee ID number should be provided to Your Dentist. An ID card may be obtained by visiting Our website at deltadentalins.com.

Contract
The Benefit explanations contained in this EOC and the attachments are subject to all provisions of the Contract. In the event there is a conflict between this EOC and the Contract, the Contract prevails. This document is not a Summary Plan Description under the Employee Retirement Income Security Act ("ERISA"*).*

Contact Us
For more information, visit Our website at deltadentalins.com or call Customer Service at 800-521-2651 or You may submit an inquiry to:

Delta Dental Insurance Company
1130 Sanctuary Parkway
Alpharetta, GA 30009

Michael G. Hankinson, Esq.
President

Kevin Jackson
Executive Vice President, Chief Growth Officer

Definitions

Certain terms used throughout this document begin with capital letters. When these terms are capitalized, use the following definitions to understand their meanings as they pertain to Your Benefits and how Your dental coverage works.

Annual Enrollment Period: the period the Contractholder has established for You to make changes in coverage selections for the next Contract Term.

Benefits: covered dental services as described under the Contract, this EOC, *Attachments A and B* and any other attachments.

Calendar Year: the 12 months of the year from January 1 through December 31.

Coinsurance: the percentage of the MCA for covered services You are responsible for paying as shown in *Attachment A*.

Contract: the agreement between Us and the Contractholder, including any attachments.

Contract Term: the period during which coverage is in effect whether on a Calendar Year or Contract Year basis.

Contract Benefit Level: the percentage of the MCA that We will pay after the Deductible has been satisfied as shown in *Attachment A*.

Contractholder: the organization named herein contracting to obtain dental Benefits.

Deductible: a dollar amount that You must pay for certain covered services before We pay.

Delta Dental Premier® Dentist ("Premier Dentist"): a Dentist who has agreed to provide services at pre-negotiated rates. A Premier Dentist contracts with Us or any other member company of the Delta Dental Plans Association and agrees to accept the Premier Contracted Fee as payment in full for covered Benefits provided under this Plan. A Premier Dentist also agrees to comply with Our administrative guidelines.

Delta Dental Premier Contracted Fee ("Premier Contracted Fee"): the fee for a Single Procedure that a Premier Dentist has contractually agreed to accept as payment in full for covered services.

Delta Dental PPO™ Dentist ("PPO Dentist"): a Dentist who has agreed to provide services at pre-negotiated rates. A PPO Dentist contracts with Us or any other member company of the Delta Dental Plans Association and agrees to accept the PPO Contracted Fee as payment in full for covered Benefits provided under this Plan. A PPO Dentist also agrees to comply with Our administrative guidelines.

Delta Dental PPO Contracted Fee ("PPO Contracted Fee"): the fee for a Single Procedure that a PPO Dentist has contractually agreed to accept as payment in full for covered services.

Dentist: a duly licensed Dentist legally entitled to practice dentistry at the time and in the state or jurisdiction in which services are performed.

Dependent ("Dependent Enrollee"): the Primary Enrollee's eligible Dependent and any individual eligible to enroll for Benefits because of their relationship with the Primary Enrollee. And includes:

- the Spouse.
- unmarried dependent children from birth to age 26.
- as otherwise required by state or federal law.

Children include natural children, stepchildren, foster children and adopted children, children placed for adoption and children of a partner as recognized by the Contractholder. A newborn child is automatically covered for 31 days after birth. For coverage to continue beyond 31 days, notification of birth and payment of Premium will be required.

Effective Date: the date the Contract begins or coverage begins.

Enrollee ("Primary Enrollee"): Member or a Dependent ("Dependent Enrollee") enrolled to receive Benefits.

Grace Period: a period of no less than 31 days after the Premium payment is due under the Contract, in which a payment may be made and during which coverage will continue in effect, subject to the Premium payment by the end of the Grace Period. If the Premium remains unpaid at the end of the Grace Period, We may cancel Your enrollment in accordance with the notice requirements in the *Cancellation of Enrollment* section.

Maximum Contract Allowance ("MCA"): the reimbursement under Your Plan against which We calculate Our payment and Your financial obligation. Subject to adjustment for extreme difficulty or unusual circumstances, the MCA for services provided:

- by a PPO Provider is the lesser of the Provider's Submitted Fee or the Delta Dental PPO Contracted Fee.
- by a Premier Provider is the lesser of the Provider's Submitted Fee or the Delta Dental Premier Contracted Fee.
- by a Non-Delta Dental Provider is the lesser of the Provider's Submitted Fee or the Program Allowance.

Non-Delta Dental Dentist or Non-participating Dentist: a Dentist who has not signed a contract with Us to provide Benefits under this Plan.

Premium: the amount the Contractholder or You, if applicable, pay for coverage and as stated in the *Group Information* section of the Contract.

Pre-Treatment Estimate: an estimation of the allowable Benefits for the services proposed, it is not a guarantee of payment. Refer to the *Pre-Treatment Estimate* section for additional information.

Procedure Code: the Current Dental Terminology© ("CDT") number assigned to a Single Procedure by the American Dental Association.

Program Allowance: the amount determined by an established level of all charges for services by Dentists with similar professional standing in the same geographical area. Program Allowances may be different based on the Dentist's contracting status.

Single Procedure: a dental procedure that is assigned a unique Procedure Code.

Spouse: an individual who is a partner of the Primary Enrollee as:

- Defined and as may be required to be treated as a Spouse by the laws of the state where the Contract is issued and delivered;
- Defined and as may be required to be treated as a Spouse by the laws of the state where the Primary Enrollee resides; or
- May be recognized by the Contractholder.

Submitted Fee: the amount the Dentist bills and submits for a specific procedure.

Eligibility and Enrollment – When Coverage Begins

Eligibility Requirements
The Contractholder is responsible for establishing eligibility and reporting enrollment to Us. We process enrollment as reported. You are eligible to enroll if You meet the eligibility requirements defined by the Contractholder.

Your Dependents are eligible to enroll on the same date that You enroll. Later-acquired Dependents become eligible as soon as they acquire dependent status.

Children must be dependent upon You for support and maintenance.

There is no coverage under this Plan for Dependents on active military duty.

Medicare eligibility will not affect Your eligibility or Your Dependent's eligibility, if applicable.

Overage Children
An overage unmarried Dependent child may be eligible if:

- The child is incapable of self-sustaining employment because of a physically or mentally disabling injury, illness or condition that began prior to reaching the limiting age;
- The child is chiefly dependent on the Primary Enrollee for support; and
- Proof of disability is provided within 31 days of request. Proof of disability will not be required more than one (1) time per year following a two year period after the Dependent reaches the limiting age. Eligibility will continue as long as the Dependent relies on the Primary Enrollee for support because of a physically or mentally disabling injury, illness or condition that began before the Dependent reached the limiting age.

Enrollment Requirements
If the Contractholder is responsible for Your Premium, coverage will begin on the Contract's Effective Date.

If You are responsible for Your Premium,

- You must enroll within 31 days after the date You become eligible or during an Annual Enrollment Period.
- All Dependents must be enrolled within 31 days after they become eligible or during an Annual Enrollment Period or *Special Enrollment Period*.
- If You elect Dependent coverage, You must enroll all Your Dependent Enrollees for coverage.

You:

- Must pay Premiums in the manner elected by the Contractholder and approved by Us, and
- May not drop coverage and may only make coverage changes during an Annual Enrollment Period or *Special Enrollment Period* as a result of a qualifying status change.

A Dependent may not be enrolled under more than one (1) Primary Enrollee.

A child who is eligible as a Primary Enrollee and a Dependent can be insured under the Contract as a Primary Enrollee or as a Dependent Enrollee but not both at the same time.

Special Enrollment Periods – Enrollment Changes
After Your Effective Date, You may change Your enrollment during an Annual Enrollment Period or during a *Special Enrollment Period* as a result of a qualifying status change. Qualifying status changes include, but are not limited to, the following events:

- Marital status: Examples include, but are not limited to: marriage, divorce, legal separation, annulment or death;
- Number of Dependents (a child's birth, adoption of a child, placement of child for adoption, addition of a grandchild, stepchild or foster child or death of a child);
- Dependent child ceases to satisfy eligibility requirements;
- Employment status (change in Your or Your Dependent's employment status);
- Residence (You move);
- Court order requiring Dependent coverage;
- Loss of other group coverage;
- Any other current or future election changes permitted by Internal Revenue Code Section 125; or
- Any other changes specified by applicable law or regulation.

Continuation of Benefits
We will not pay for any services/treatment received after Your coverage ends. However, We will pay for covered services incurred while You were eligible if the procedures are completed within 31 days of the date Your coverage ends. A dental service is incurred

- for an appliance (or change to an appliance), at the time the impression is made;
- for a crown, bridge or cast restoration, at the time the tooth or teeth are prepared;
- for root canal therapy, at the time the pulp chamber is opened; and
- for all other dental services, at the time the service is performed or the supply furnished.

Premiums

Subject to the terms and conditions of the Contract, We agree to provide the Benefits described in this EOC in consideration of the Contractholder's remittance of the Premium when due or if You are being billed directly, Your payment of the required Premium when due.

How To Use This Plan

We will pay Benefits for the dental services described in *Attachment A subject to the limitations and exclusions described in Attachment B*. We will pay Benefits only for covered services. This EOC covers several categories of dental services when they are necessary and within the standards of generally accepted dental practice standards. Claims are processed in accordance with Our standard processing policies. We may use Dentists (dental consultants) to review treatment plans, diagnostic materials and/or prescribed treatments to determine generally accepted dental practices and to determine if treatment has a favorable prognosis. Limitations and exclusions will be applied for the period You are covered under any Delta Dental plan or prior dental care plan provided by the Contractholder. Additional eligibility periods, if any, are listed in *Attachment A*. If You receive dental services from a Dentist outside Your state of residence, the Dentist will be paid according to Our network payment provisions for Your state.

If a primary dental procedure includes component procedures that are performed at the same time as the primary procedure, the component procedures are considered to be part of the primary procedure for purposes of determining the Benefit payable, even when billed separately.

Coinsurance
We will pay a percentage of the MCA for covered services, as shown in *Attachment A* and You are responsible for paying the balance which is referred to as Coinsurance. Coinsurance is part of Your out-of-pocket costs even after any Deductible has been met.

The amount of Your Coinsurance will depend on the type of service and the Dentist providing the service. Dentists are required to collect Coinsurance for covered services. Your Contractholder has chosen to require Coinsurances as a method of sharing the costs of providing dental Benefits between the Contractholder and You. If the Dentist discounts, waives or rebates any portion of the Coinsurance to You, We will be obligated to provide as Benefits only the applicable percentages of the Dentist's fees reduced by the amount of the fees that are discounted, waived or rebated.

It is to Your advantage to select PPO Dentists because they have agreed to accept the MCA as payment in full for covered services, which typically results in lower out-of-pocket costs for You. Please refer to the sections titled "*Selecting Your Dentist*" and *"How Claims Are Paid*" for more information.

Deductible
Your Plan features a Deductible. This is an amount You must pay out-of-pocket before Benefits are paid. The Deductible amounts are listed in *Attachment A*. Deductibles apply to all Benefits unless otherwise noted. Only the Dentist fees You pay for covered Benefits will count toward the Deductible.

Maximum Amount
A maximum amount is the maximum dollar amount We will pay toward the cost of dental care. You are responsible for paying costs above this amount. The maximum amount payable is shown in *Attachment A*. Maximums may apply on a Contract Term basis, yearly basis, a per services basis, or a lifetime basis.

Pre-Treatment Estimate
Pre-Treatment Estimate requests are not required; however, Your Dentist may file a claim form before beginning treatment, showing the services to be provided to You. We will estimate the amount of Benefits payable for the listed services. By asking Your Dentist for a Pre-Treatment Estimate before You agree to receive any prescribed treatment, You will have an estimate up front of what We will pay and the difference You will need to pay. The Benefits will be processed according to the terms of the Contract when the treatment is actually performed. Pre-Treatment Estimates are valid for 365 days unless other services are received after the date of the Pre-Treatment Estimate, or until an earlier occurrence of any one of the following events:

- the date the Contract terminates;
- the date Benefits are amended if the services in the Pre-Treatment Estimate are part of the amendment;
- the date Your coverage ends; or
- the date the Dentist's agreement with Us ends.

A Pre-Treatment Estimate does not guarantee payment. It is an estimate of the amount We will pay if You are enrolled and meet all the Plan requirements at the time the treatment is completed and may not take into account any Deductibles.

Selecting Your Dentist – Free Choice of Dentist

We will provide Your Plan with PPO and Premier Dentists at convenient locations. You may see any Dentist for Your covered treatment, whether the Dentist is a PPO Dentist, Premier Dentist or a Non-Delta Dental Dentist.

Remember, You enjoy the greatest Benefits—including out-of-pocket savings—when You choose a PPO Dentist. To take full advantage of Your Plan, We highly recommend You verify a Dentist's participation status with Your dental office before each appointment. Review the *How Claims Are Paid* section to understand the method of payments applicable to Your Dentist selection and how that may impact Your out-of-pocket costs.

Locating a PPO Dentist
To locate a PPO Dentist You may access information through Our website at deltadentalins.com or contact Customer Service at 800-521-2651.

How Claims are Paid

Payment for Services — PPO Dentist
Payment for covered services performed for You by a PPO Dentist is calculated based on the MCA. PPO Dentists have agreed to accept the PPO Contracted Fee as the full charge for covered services.

The portion of the MCA payable by Us is limited to the applicable Contract Benefit Level shown in *Attachment A*. Our payment is sent directly to the PPO Dentist who submitted the claim. We will advise You of any charges not payable by Us for which You are responsible. These charges are generally Your share of the MCA, as well as any Deductibles, charges where the maximum has been exceeded, and/or charges for non-covered services.

Payment for Services — Premier Dentist
Payment for covered services performed for You by a Premier Dentist is calculated based on the MCA. Premier Dentists have agreed to accept the Premier Contracted Fee as the full charge for covered services.

The portion of the MCA payable by Us is limited to the applicable Contract Benefit Level shown in *Attachment A*. Our payment is sent directly to the Premier Dentist who submitted the claim. We will advise You of any charges not payable by Us for which You are responsible. These charges are generally Your share of the MCA, as well as any Deductibles, charges where the maximum has been exceeded, and/or charges for non-covered services.

Payment for Services — Non-Delta Dental Dentist
Payment for services performed for You by a Non-Delta Dental Dentist is also calculated based on the MCA. The portion of the MCA payable by Us is limited to the applicable Contract Benefit Level shown in *Attachment A*. Non-Delta Dental Dentists have no agreement with Us and are free to bill You for any difference between what We pay and the Submitted Fee.

Non-Delta Dental Dentists will bill You their charges, which may be higher than the MCA for the service. You may be required to pay the Dentist and then submit a claim to Us for reimbursement. When dental services are received from a Non-Delta Dental Dentist, Our payment is sent directly to You unless You made an assignment to the Dentist. You are responsible for payment of the Non-Delta Dental Dentist's Submitted Fee.

The portion of the MCA payable by Us is limited to the applicable Contract Benefit Level shown in *Attachment A*. Since Our payment for services You receive may be less than the Non-Delta Dental Dentist's actual charges, Your out-of-pocket cost may be significantly higher. We advise You of any charges not payable by Us for which You are responsible. These charges are generally Your share of the MCA, as well as any Deductibles, charges where the maximum has been exceeded, and/or charges for non-covered services.

How to Submit a Claim
We do not require special claim forms. However, most dental offices have claim forms available. PPO and Premier Dentists will submit Your claims paperwork for You. Non-Delta Dental Dentists may also provide this service upon Your request. If You receive services from a Non-Delta Dental Dentist who does not provide this service, You can submit Your

own claim directly to Us. Your dental office should be able to assist You in filling out the claim form. Claims should be submitted to:

Delta Dental Insurance Company
P.O. Box 1809
Alpharetta, GA 30023

Notice of Claim
Written notice of claim must be given to Us within 20 days after the occurrence or commencement of any loss covered by the Contract, or as soon thereafter as is reasonably possible.

Claim Forms
When We receive notice of a claim that does not contain all necessary information or is not on an appropriate claim form, forms for filing will be sent to You along with a request for any missing information. If these forms are not provided within 15 days, You will meet Our requirements if We are given written proof of the nature and extent of the loss.

Proof of Loss
Written proof of loss (claims forms or other evidence of the claim that is ordinarily required) must be furnished to Us within 90 days after the date of such loss. Failure to furnish such proof of loss within the time required will not invalidate or reduce any claim if not reasonably possible to give proof within such time. However, proof of loss must be furnished as soon as reasonably possible. In any event, proof of loss must be given no later than one year from such time (unless the claimant was legally incapacitated).

Time Payment for Claims
Claims payable under the Contract for any loss other than loss for which the Contract provides any periodic payment will be processed immediately after written proof of loss is received.

Payment of Claims
All Benefits not paid to the Dentist will be payable to You, the Primary Enrollee, or Dependent Enrollee, or to Your estate, or to an alternate recipient as directed by court order, except that if the person is a minor or otherwise not competent to give a valid release, Benefits may be payable to his or her parent, guardian, or to any relative by blood or connection by marriage of the individual who is considered by Us to be equitably entitled to the benefit, up to an amount not exceeding $5,000.

Claims Appeal
We will notify You and Your Dentist if Benefits are denied for services, in whole or in part, stating the reason(s) for denial. You have at least 180 days after receiving a notice of denial to request an appeal or grievance by writing to Us giving reasons why You believe the denial was wrong. You and Your Dentist may also ask Us to examine any additional information provided that may support the appeal or grievance.

Send Your appeal or grievance to:

Delta Dental Insurance Company
P.O. Box 1860
Alpharetta, GA 30023

We will send You a written acknowledgment within five (5) days upon receipt of the appeal or grievance. We will make a full and fair review and may ask for more documents during this review if needed. The review will take into account all comments, documents, records or other information, regardless of whether such information was submitted or considered initially. If the review is of a denial based in whole or in part on lack of dental necessity, experimental treatment or clinical judgment in applying the terms of the Contract, We will consult with a Dentist who has appropriate training and experience. The review will be conducted by a person who is neither the individual who made the claim denial that is subject to the review, nor the subordinate of such individual. We will send You a decision within 30 days after receipt of Your appeal or grievance.

If You believe You need further review of Your appeal or grievance, You may contact Your state regulatory agency if applicable. If the group health Plan is subject to the Employee Retirement Income Security Act of 1974 ("ERISA"), You may contact the U.S. Department of Labor, Employee Benefits Security Administration ("EBSA") for further review of the claim or if You have questions about the rights under ERISA. You may also bring a civil action under Section 502(a) of ERISA.

The address of the U.S. Department of Labor is:
U.S. Department of Labor
Employee Benefits Security Administration ("EBSA")
200 Constitution Avenue, N.W.
Washington, D.C. 20210

Coordination of Benefits
If You or Your Dependents are covered by any other dental plan and receive a service covered by this Plan and the other dental plan, Benefits will be coordinated. If this Plan is the "primary" plan, We will not reduce Benefits. If this Plan is the "secondary" plan, We may reduce Benefits so that the total Benefits paid or provided by all plans do not exceed 100% of total allowable expense.

But if this Plan is the "secondary" plan, We determine Benefits after those of the primary plan and will pay the lesser of the amount that We would pay in the absence of any other dental Benefit coverage or Your total out-of-pocket cost under the primary plan for Benefits covered under Your Plan.

In order to determine which plan is primary, We will use the following rules.

- The plan covering You as an employee or Primary Enrollee is primary over a plan covering You as a Dependent.
- The plan covering You as an employee is primary over a plan covering You as a Dependent; except that if You are also a Medicare beneficiary, and as a result of the rule established by Title XVIII of the Social Security Act and implementing regulations, Medicare is:
  - Secondary to the plan covering You as a Dependent; and
    - Primary to the plan covering You as other than a Dependent (e.g. a retired employee), then the Benefits of the plan covering You as a Dependent are determined before those of the plan covering You as other than a Dependent.
- Except as stated above, when this Plan and another plan cover the same child as a Dependent of different persons, referred to as parents:
  - The Benefits of the plan of the parent whose birthday falls earlier in a year are determined before those of the plan of the parent whose birthday falls later in that year; but
  - If both parents have the same birthday, the Benefits of the plan covering one parent longer are determined before those of the plan covering the other parent for a shorter period of time.

    - However, if the other plan has no birthday rule, but has a rule based on the gender of the parent, and as a result, the plans do not agree on the order of Benefits, the rule in the other plan determines the order of Benefits.

- In the case of a Dependent child of legally separated or divorced parents, the plan covering the child as a Dependent of the parent with legal custody or as a Dependent of the custodial parent's Spouse (i.e. step-parent) will be primary over the plan covering the child as a Dependent of the parent without legal custody.
- If there is a court decree establishing financial responsibility for the child's health care expenses, the Benefits of a plan covering the child as a Dependent of the parent with financial responsibility will be determined before the Benefits of any other policy covering the child as a Dependent child.
- If the specific terms of a court decree state that the parents will share joint custody without stating that one of the parents is responsible for the child's health care expenses, the plans covering the child will follow the order of Benefit determination rules outlined above.
- The Benefits of a plan covering You as an employee, if applicable, who is neither laid-off nor retired are determined before those of a plan covering You as a laid-off or retired employee. The same holds true if You are a Dependent of a Primary Enrollee as a retiree or an employee. If the other plan does not have this rule, and as a result, the plans do not agree on the order of Benefits, this rule is ignored.
- If Your coverage is provided under a right of continuation pursuant to federal or state law also is covered under another plan, the following will be the order of benefit determination.
    - First, the Benefits of a plan covering You as an employee, if applicable, or Primary Enrollee (or the Primary Enrollee's Dependent).
    - Second, the Benefits under the continuation coverage.

  If the other plan does not have the rule described above, and if, as a result, the plans do not agree on the order of Benefits, this rule is ignored.
- If none of the above rules determines the order of Benefits, the Benefits of the plan covering You as an employee longer are determined before those of the plan covering You for the shorter term.
- When determination cannot be made in accordance with the rules above, the Benefits of a plan that is a medical plan covering dental as a Benefit will be primary to a standalone dental plan.

Renewal and Termination of Benefits

This Plan renews on the anniversary of the Contract unless We provide notice of a change in Premiums or Benefits and the Contractholder does not accept the change. Your Benefits will terminate:

- As of the date that this Plan is terminated,
- You cease to be eligible under the terms of this Plan, or
- Your enrollment is canceled under the terms of this Plan.

We are not obligated to continue to provide Benefits to You or Your Dependents except for completion of dental treatment started when this Plan was in effect.

Cancellation of Enrollment
Your enrollment may be canceled, or renewal of enrollment refused, in the following events:

Immediately:

- Upon loss of eligibility as described in this EOC; or
- If You engage in conduct detrimental to safe operations and the delivery of services while receiving services from an in-network Dentist.

Upon 15 days written notice if:

- The Premiums are not paid by, or on behalf of You, on the date due. However, You may continue to receive Benefits during the Grace Period and may be reinstated during the term of the Contract upon payment of any unpaid Premium; or
- You knowingly commit or permit another person to commit fraud or deception in obtaining Benefits.

Upon 30 days written notice if:

- The Contract is terminated or not renewed; or
- You fail to pay Coinsurances and/or Deductibles, if applicable. However, You may be reinstated during the term of the Contract upon payment of all delinquent charges.

The Contractholder will provide You with 15 days advance notice prior to cancellation or discontinuance of this Plan.

Cancellation of Your enrollment will automatically cancel the enrollment of any of Your Dependent Enrollees.

General Provisions

Conformity With Prevailing Laws
All legal questions about the Contract will be governed by the state where the Contract was entered into and is to be performed. Any part of the Contract which conflicts with the laws of the state or federal law is hereby amended to conform to the minimum requirements of such laws.

Compliance with Administrative Simplification, Security and Privacy Regulations
The parties will comply in all respects with applicable federal, state and local laws and regulations relating to administrative simplification, security and privacy of individually identifiable information including executing any agreements as required by the Health Insurance Portability and Accountability Act of 1996 ("HIPAA"). The parties agree that the Contract will incorporate terms as necessary and as applicable to execute the required agreements (i.e. business associate agreement) to comply with federal regulations issued under the HIPAA and HITECH Act or to comply with any other enacted administrative simplifications, security or privacy laws or regulations.

Entire Contract; Changes
The Contract, including this EOC, and any attachments, is the entire agreement between the parties. No agent has authority to change or waive any of its provisions. Changes are not valid unless approved by one of Our executive officers.

Incontestability
After the Contract has been in force for 3 years from the Effective Date, no statement made by the Contractholder will be used to void the Contract. No statement by an employee or You with respect to Your insurability will be used to reduce or deny a claim or contest the validity of insurance for You after Your coverage has been in effect 3 years or more during Your lifetime.

No claims for loss incurred or disability commencing after 3 years from the date of issue of the Contract will be reduced or denied on the ground that a disease or physical condition not excluded from coverage by name or specific description effective on the date of loss existed prior to the Effective Date of the Contract.

Legal Actions

No action at law or in equity will be brought to recover on the Contract prior to expiration of 60 days after proof of loss has been filed in accordance with requirements of the Contract, nor will an action be brought at all unless brought within three (3) years from expiration of the time within which proof of loss is required by the Contract.

Misstatements on Application; Effect
In the absence of fraud or intentional misrepresentation of material fact in applying for or procuring coverage, all statements made by You or the Contractholder will be deemed representations and not warranties. No such statement will be used in defense to a claim, unless it is contained in a written application.

Any misrepresentation, omission, concealment of fact or incorrect statement which is material to the acceptance of risk may prevent recovery if, had the true facts been known to Us, We would not in good faith have issued the Contract at the same Premium rate. If any misstatement would materially affect the rates, We reserve the right to adjust the Premium to reflect Your actual circumstances at enrollment.

Misstatement of Age
If Your age has been misstated, all amounts payable under this Plan will be such as the Premium paid would have purchased at the correct age.

Clinical Examination
Before approving a claim, We will be entitled to receive, to such extent as may be lawful, from any attending or examining Dentist, or from hospitals in which a Dentist's care is provided, such information and records relating to attendance to or examination of, or treatment provided to, You as may be required to administer the claim, or have You be examined by a dental consultant retained by Us, in or near Your community or residence. If an examination is required, it will be performed at Our expense. We will in every case hold such information and records confidential.

Severability
If any part of the Contract, this EOC, attachments or an amendment to any of these documents is found by a court or other authority to be illegal, void or not enforceable, all other portions of these documents will remain in full force and effect.

Non-Discrimination
We comply with applicable federal civil rights laws and do not discriminate on the basis of race, color, national origin, age, disability, or sex, including sex stereotypes and gender identity. We do not exclude people or treat them differently because of race, color, national origin, age, disability, or sex, including sex stereotypes and gender identity. We:

- Provide free aids and services to people with disabilities to communicate effectively with Us, such as:
  - Qualified sign language interpreters
  - Written information in other formats (large print, audio, accessible electronic formats, other formats)
- Provide free language services to people whose primary language is not English, such as:
  - Qualified interpreters
  - Information written in other languages

If You need these services, contact Customer Service at 800-521-2651.

If You believe that We have failed to provide these services or discriminated in another way on the basis of race, color, national origin, age, disability, or sex, including sex stereotypes and gender identity, You can file a grievance electronically online, over the phone with a representative, or by mail.

Delta Dental Insurance Company
P.O. Box 997100
Sacramento, CA 95899
Telephone Number: 800-471-0275
Website Address: deltadentalins.com

You can also file a civil rights complaint with the U.S. Department of Health and Human Services, Office for Civil Rights, electronically through the Office for Civil Rights Complaint Portal, available at https://ocrportal.hhs.gov/ocr/portal/lobby.jsf, or by mail or phone at:

U.S. Department of Health and Human Services
200 Independence Avenue, SW
Room 509F, HHH Building
Washington, D.C. 20201
1-800-368-1019, 800-537-7697 (TDD)

Complaint forms are available at http://www.hhs.gov/ocr/office/file/index.html.

Attachment A
Deductibles, Maximums and Contract Benefit Levels

Contractholder: Benefits Association, Inc.

Group Number: 22257 **Effective Date:** 01/01/2026

Deductibles & Maximums	
Annual Deductible	$100 per Enrollee each Calendar Year
Lifetime Orthodontic Deductible	$150 per dependent child Enrollee to age 26
Annual Maximum	$3,000 per Enrollee per Calendar Year
Lifetime Orthodontic Maximum	$1,500 per dependent child Enrollee to age 26
	The maximum amount payable per Calendar Year per dependent child Enrollee for Orthodontic Services is $500 (Not to exceed the dependent child Enrollee's $1,500 lifetime Orthodontic maximum amount.) This $500 Orthodontic Benefit is inclusive of the $3,000 Annual Maximum amount.

Contract Benefit Levels†			
Dental Service Category*	**Year 1**	**Year 2**	**Year 3 & after**
We will pay or otherwise discharge the Contract Benefit Level shown in this table of the Maximum Contract Allowance for the following services:			
Diagnostic and Preventive Services	80%	90%	100%
Basic Services	60%	70%	80%
Major Services	50%	50%	50%
Orthodontic Services	No Benefit	50%	50%

† Reimbursement is based on PPO Contracted Fees for PPO Providers, Premier Contracted Fees for Premier Providers and Program Allowance for Non-Delta Dental Providers.

* The Contract Benefit Level will increase each Calendar Year for each Enrollee on the anniversary of the Primary Enrollee's Effective Date of Coverage.

Attachment B
Services, Limitations and Exclusions

Contractholder: Benefits Association, Inc.

Group Number: 22257 **Effective Date:** 01/01/2026

Description of Dental Services
We will pay the Contract Benefit Level shown in Attachment A for the following services:

- **Diagnostic and Preventive Services**

(1)	Diagnostic:	procedures to aid the Provider in determining required dental treatment.
(2)	Preventive:	cleaning (including scaling in the presence of generalized moderate or severe gingival inflammation-full mouth, which is considered to be a Diagnostic and Preventive Benefit, and periodontal maintenance, which is considered to be a Major Benefit for payment purposes), topical application of fluoride solutions.
(3)	Specialist Consultations:	opinion or advice requested by a general Dentist.

- **Basic Services**

(1)	General Anesthesia or IV Sedation:	when administered by a Provider for covered oral surgery or selected endodontic and periodontal surgical procedures.
(2)	Sealants:	topically applied acrylic, plastic or composite materials used to seal developmental grooves and pits in permanent molars for the purpose of preventing decay.
(3)	Restorative:	amalgam and resin-based composite restorations (fillings) and prefabricated crowns for treatment of carious lesions (visible destruction of hard tooth structure resulting from the process of decay).
(4)	Other Basic Services:	space maintainers.

- **Major Services**

(1)	Oral Surgery:	extractions and other surgical procedures (including pre- and post-operative care).
(2)	Endodontics:	treatment of diseases and injuries of the tooth pulp.
(3)	Periodontics:	treatment of gums and bones supporting teeth.
(4)	Palliative:	emergency treatment to relieve pain.
(5)	Crowns and Inlays/Onlays:	treatment of carious lesions (visible decay of the hard tooth structure) when teeth cannot be restored with amalgam or resin-based composites.
(6)	Prosthodontics:	procedures for construction of fixed bridges, partial or complete dentures and the repair of fixed bridges.
(7)	Denture Repairs:	repair to partial or complete dentures, including rebase procedures and relining.

- **Orthodontic Services**
  Procedures performed by a Provider using appliances to treat malocclusion of teeth and/or jaws which significantly interferes with their function.

- ***Note on additional Benefits during pregnancy***
  When You are pregnant, We will pay for additional services to help improve the oral health of You during the pregnancy. The additional services each Calendar Year while You are covered include one (1) additional oral exam and either one (1) additional routine cleaning; one (1) additional periodontal scaling and root planing per quadrant; or one (1) additional periodontal maintenance procedure. Written confirmation of the pregnancy must be provided by the Enrollee or her Provider when the claim is submitted.

Limitations

(1) Services that are more expensive than the form of treatment customarily provided under accepted dental practice standards are called "optional services". Optional services also include the use of specialized techniques instead of standard procedures.

Examples of optional services:
- a composite restoration instead of an amalgam restoration on posterior teeth;
- a crown where a filling would restore the tooth;
- an inlay/onlay instead of an amalgam restoration;
- porcelain, resin or similar materials for crowns placed on a maxillary second or third molar, or on any mandibular molar (an allowance will be made for a porcelain fused to high noble metal crown); or
- an overdenture instead of denture.

If an Enrollee receives Optional Services, an alternate Benefit will be allowed, which means We will base Benefits on the lower cost of the customary service or standard practice instead of on the higher cost of the Optional Service. The Enrollee will be responsible for the difference between the higher cost of the Optional Service and the lower cost of the customary service or standard procedure.

(2) Exam and cleaning limitations:
- We will pay for oral examinations (except after-hours exams and exams for observation) and cleanings (including scaling in the presence of generalized moderate or severe gingival inflammation-full mouth, periodontal maintenance in the presence of inflamed gums or any combination thereof) no more than twice in a Calendar Year.
- A full mouth debridement is allowed once in a lifetime when you have no history of prophylaxis, scaling and root planing, periodontal surgery or periodontal maintenance procedures within three (3) years. When allowed a full mouth debridement counts toward the maintenance frequency in the year provided.
- Full mouth debridement is not allowed when performed by the same Provider/Provider office on the same day as evaluation procedures.
- Note that periodontal maintenance, Procedure Codes that include periodontal maintenance and full mouth debridement are covered as a Major Benefit and that routine cleanings (including scaling in presence of generalized moderate or severe gingival inflammation-full mouth) are covered as a Diagnostic and Preventive Benefit. See note on additional Benefits during pregnancy.
- Caries risk assessments are allowed once in 36 months.

(3) X-ray limitations:
- We will limit the total reimbursable amount to the Provider's Accepted Fee for a complete intraoral series when the fees for any combination of intraoral x-rays in a single treatment series meet or exceed the Accepted Fee for a complete intraoral series.
- When a panoramic film is submitted with supplemental film(s), We will limit the total reimbursable amount to the Provider's Accepted Fee for a complete intraoral series.
- If a panoramic film is taken in conjunction with an intraoral complete series, We consider the panoramic film to be included in the complete series.
- A complete intraoral series and panoramic film are each limited to once every 60 months.
- Bitewing x-rays are limited to two (2) times in a Calendar Year when provided to Enrollees under age 18 and one (1) time each Calendar Year for Enrollees age 18 and over. Bitewings of any type are disallowed within 12 months of a full mouth series unless warranted by special circumstances.
- Bitewing x-rays are limited to two images for under age 10.
- Image capture procedures are not separately allowable services.

(4) Topical application of fluoride solutions is limited to age 19 and no more than twice in a Calendar Year.

(5) Interim caries arresting medicament application is limited to twice per tooth per Calendar Year.

(6) Space maintainer limitations:
- Space maintainers are limited to the initial appliance and are a Benefit to age 14. However, a distal shoe space maintainer-fixed-unilateral is limited to Dependent Enrollees eight (8) and younger. A separate/additional space maintainer can be allowed after the removal of a unilateral distal shoe.
- The removal of a fixed space maintainer is considered to be included in the fee for the space maintainer; however, an exception is made if the removal is performed by a different Provider/Provider office.

(7) Pulp vitality tests are allowed once every six (6) months when definitive treatment is not performed.

(8) Sealants are limited as follows:
- to permanent first molars through age eight (8) and to permanent second molars through age 15 if they are without caries (decay) or restorations on the occlusal surface.
- repair or replacement of a Sealant on any tooth within 24 months of its application is included in the fee for the original placement.

(9) Specialist consultations are limited to twice in a Calendar Year and count toward the oral exam frequency. Screenings of patients or assessments of patients reported individually when covered are limited to only one in a 12-month period and included if reported with any other examination on the same date of service and Provider office.

(10) We will not cover replacement of an amalgam or resin-based composite restorations (fillings) or prefabricated crowns within 24 months of treatment if the service is provided by the same Provider/Provider office. Replacement restorations within 24 months are included in the fee for the original restoration.

(11) Protective restorations (sedative fillings) are allowed once per tooth in a six (6) month period when definitive treatment is not performed on the same date of service.

(12) Therapeutic pulpotomy is limited to once per lifetime for baby (deciduous) teeth only and is considered palliative treatment for permanent teeth.

(13) Pulpal therapy (resorbable filling) is limited to once in a lifetime. Retreatment of root canal therapy by the same Provider/Provider office within 24 months is considered part of the original procedure.

(14) Apexification is only benefited on permanent teeth with incomplete root canal development or for the repair of a perforation. Apexification visits have a lifetime limit per tooth of one (1) initial visit, one (1) interim visit and one (1) final visit to age 19.

(15) Retreatment of apical surgery by the same Provider/Provider office within 24 months is considered part of the original procedure.

(16) Palliative treatment is covered per visit, not per tooth, and the fee includes all treatment provided other than required x-rays or select diagnostic procedures.

(17) Periodontal limitations:

- Benefits for periodontal scaling and root planing in the same quadrant are limited to once in every 24-month period. See note on additional Benefits during pregnancy. In the absence of supporting documentation, no more than two quadrants of scaling and root planing will be covered on the same date of service.
- Periodontal surgery in the same quadrant is limited to once in every 36-month period and includes any surgical re-entry or scaling and root planing performed within 36-months by the same Provider/Provider office.
- Periodontal services, including bone replacement grafts, guided tissue regeneration, graft procedures and biological materials to aid in soft and osseous tissue regeneration are only covered for the treatment of natural teeth and are not covered when submitted in conjunction with extractions, periradicular surgery, ridge augmentation or implants. Guided tissue regenerations and/or bone grafts are not Benefits in conjunction with soft tissue grafts in the same surgical area.
- Periodontal surgery is subject to a 30 day wait following periodontal scaling and root planing in the same quadrant. If in the same quadrant, scaling and root plaining must be performed at least six (6) weeks prior to the periodontal surgery.
- Cleanings (regular and periodontal) and full mouth debridement are subject to a 30 day wait following periodontal scaling and root planing if performed by the same Provider office.

(18) Oral surgery services are covered once in a lifetime except removal of cysts and lesions and incision and drainage procedures, which are covered once in the same day.

(19) The following oral surgery procedure is limited to age 19 (or orthodontic limiting age): transseptal fiberotomy/supra crestal fiberotomy, by report.

(20) The following oral surgery procedures are limited to age 19 (or orthodontic limiting age) provided orthodontic services are covered: surgical access of an unerupted tooth, placement of device to facilitate eruption of impacted tooth, and surgical repositioning of teeth.

(21) Frenulectomy and frenuloplasty are only considered in cases of ankyloglossia (tongue-tie) interfering with feeding or speech as diagnosed and documented by a physician, or the frenum is contributing to the presence of a large diastema(s).

(22) Crowns are covered not more often than once in any 60 month period except when We determine the existing crown is not satisfactory and cannot be made satisfactory because the tooth involved has experienced extensive loss or changes to tooth structure or supporting tissues.

(23) Inlays/onlays are limited to age 12 and older and are covered not more often than once in any 60 month period except when We determine the existing inlay/onlay is not satisfactory and cannot be made satisfactory because the tooth involved has experienced extensive loss or changes to tooth structure or supporting tissues.

(24) Core buildup, including any pins, are covered not more than once in any 60-month period.

(25) Post and core services are covered not more than once in any 60-month period.

(26) Crown repairs are covered not more than once in a six (6) month period. Crowns, inlays/onlays and fixed bridges include repairs for 24 months following installation.

(27) Denture repairs are covered not more than once in any 24-month period except for fixed denture repairs which are covered not more than once in any 60-month period.

(28) Prosthodontic appliances that were provided under any of Our plans will be replaced only after 60 months have passed, except when We determine that there is such extensive loss of remaining teeth or change in supporting tissue that the existing fixed bridge or denture cannot be made satisfactory. Fixed prosthodontic appliances are limited to age 16 and older. Replacement of a prosthodontic appliance not provided under Our Plan will be made if We determine it is unsatisfactory and cannot be made satisfactory.

(29) When a posterior fixed bridge and a removable partial denture are placed in the same arch in the same treatment episode, only the partial denture will be a Benefit.

(30) Recementation of Crowns, Inlays/Onlays or bridges is included in the fee for the Crown, Inlay/Onlay or bridge when performed by the same Provider/Provider office within six (6) months of the initial placement. After six

(6) months, payment will be limited to one (1) recementation in a lifetime for Crowns and two (2) recementations per lifetime for Inlays/Onlays by the same Provider/Provider office.

(31) The initial installation of a prosthodontic appliance is not a Benefit unless the prosthodontic appliance, bridge or denture is made necessary by natural, permanent teeth extraction occurring during a time the Enrollee was under a Delta Dental plan.

(32) We limit payment for dentures to a standard partial or complete denture (Coinsurances apply). A standard denture means a removable appliance to replace missing natural, permanent teeth that is made from acceptable materials by conventional means and includes routine post-delivery care including any adjustments and relines for the first six (6) months after placement.

- Denture rebase is limited to one (1) per arch in a 24-month period and includes any relining and adjustments for six (6) months following placement.
- Dentures, removable partial dentures and relines include adjustments for six (6) months following installation. After the initial six (6) months of an adjustment or reline, adjustments are limited to one (1) per arch in a six (6) month period and relining is limited to one (1) per arch in a six (6) month period.

  Immediate dentures and immediate removable partial dentures include adjustments for three (3) months following installation. After the initial three (3) months of an adjustment or reline, adjustments are limited to one (1) per arch in a six (6) month period and relining is limited to one (1) per arch in a six (6) month period.

- Tissue conditioning is limited to two (2) per arch in a 12-month period. However, tissue conditioning is not allowed as a separate Benefit when performed on the same day as a denture, reline or rebase service.
- Recementation of fixed partial dentures is limited to once in a six (6) month period.

(33) We will not pay for implants (artificial teeth implanted into or on bone or gums), their removal or other associated procedures, but We will credit the cost of a crown, pontic or standard complete or partial denture toward the cost of the implant associated appliance, i.e., the implant supported crown or denture. The implant appliance is not covered.
(This benefit is available for Members in Year 2 and Year3 & after).

(34) Limitations on Orthodontic Services:

- The maximum amount payable for each Enrollee is shown in Attachment A.
- Benefits for Orthodontic Services will be provided in periodic payments based on the Enrollee's continuing eligibility.
- Benefits are not paid to repair or replace any orthodontic appliance received under this plan.
- Benefits are not paid for orthodontic retreatment procedures.
- Benefits for Orthodontic Services are limited to dependent child Enrollees under the age of 26.
- Orthodontic treatment must be provided by a licensed dentist. Self-administered orthodontics are not covered.
- The removal of fixed orthodontic appliances for reasons other than completion of treatment is not a covered benefit.

(35) The fees for synchronous/asynchronous teledentistry services are considered inclusive in overall patient management and are not a separately payable service.

Exclusions

We do not pay Benefits for:

(1) treatment of injuries or illness covered by workers' compensation or employers' liability laws; services received without cost from any federal, state or local agency, unless this exclusion is prohibited by law.

(2) cosmetic surgery or procedures for purely cosmetic reasons.

(3) maxillofacial prosthetics.

(4) provisional and/or temporary restorations (except an interim removable partial denture to replace extracted anterior permanent teeth during the healing period for Dependent Enrollees 16 years of age or under). Provisional and/or temporary restorations are not separately payable procedures and are included in the fee for completed service.

(5) services for congenital (hereditary) or developmental (following birth) malformations, including but not limited to cleft palate, upper and lower jaw malformations, enamel hypoplasia (lack of development), fluorosis (a type of discoloration of the teeth) and anodontia (congenitally missing teeth), except those services provided to newborn children for medically diagnosed congenital defects or birth abnormalities.

(6) treatment to stabilize teeth, treatment to restore tooth structure lost from wear, erosion, or abrasion or treatment to rebuild or maintain chewing surfaces due to teeth out of alignment or occlusion. Examples include but are not limited to equilibration, periodontal splinting, complete occlusal adjustments or night guards/occlusal guards and abfraction.

(7) any Single Procedure provided prior to the date You became eligible for services under this Plan.

(8) prescribed drugs, medication, pain killers, antimicrobial agents, or experimental/investigational procedures.

(9) charges for anesthesia, other than general anesthesia and IV sedation administered by a Provider in connection with covered oral surgery or selected endodontic and periodontal surgical procedures. Local anesthesia and regional/or trigeminal block anesthesia are not separately payable procedures.

(10) extraoral grafts (grafting of tissues from outside the mouth to oral tissues).

(11) fixed bridges and removable partials for Dependent Enrollees under age 16.

(12) Interim implants, endodontic endosseous implant and extraoral implants.

(13) indirectly fabricated resin-based inlays/onlays.

(14) charges by any hospital or other surgical or treatment facility and any additional fees charged by the Provider for treatment in any such facility.

(15) treatment by someone other than a Provider or a person who by law may work under a Provider's direct supervision.

(16) charges incurred for oral hygiene instruction, a plaque control program, preventive control programs including home care times, dietary instruction, x-ray duplications, cancer screening or tobacco counseling.

(17) dental practice administrative services including, but not limited to, preparation of claims, any non-treatment phase of dentistry such as provision of an antiseptic environment, sterilization of equipment or infection control, or any ancillary materials used during the routine course of providing treatment such as cotton swabs, gauze, bibs, masks or relaxation techniques such as music.

(18) procedures having a questionable prognosis based on a dental consultant's professional review of the submitted documentation.

(19) any tax imposed (or incurred) by a government, state or other entity, in connection with any fees charged for Benefits, will be Your responsibility and not a covered Benefit.

(20) Deductibles, amounts over plan maximums and/or any service not covered under this Plan.

(21) services covered under this Plan but exceed Benefit limitations or are not in accordance with processing policies in effect at the time the claim is processed.

(22) the initial placement of any prosthodontic appliance, unless such placement is needed to replace one or more natural, permanent teeth extracted while the Enrollee is covered under the Contract or was covered under any dental care plan with Delta Dental. The extraction of a third molar (wisdom tooth) will not qualify under the above. Any such denture or fixed bridge must include the replacement of the extracted tooth or teeth.

(23) services for orthodontic treatment (treatment of malocclusion of teeth and/or jaws) except as provided under the orthodontic services section, if applicable.

(24) services for any disturbance of the TMJ or associated musculature, nerves and other tissues except as provided under the TMJ Benefit section, if applicable.

(25) missed and/or cancelled appointments.

(26) actions taken to schedule and assure compliance with patient appointments are inclusive with office operations and are not a separately payable service.

(27) the fees for care coordination are considered inclusive in overall patient management and are not a separately payable service.

(28) dental case management motivational interviewing and patient education to improve oral health literacy.

(29) non-ionizing diagnostic procedure capable of quantifying, monitoring and recording changes in structure of enamel, dentin, and cementum.

(30) extra-oral – 2D projection radiographic image and extra-oral posterior dental radiographic image.

(31) diabetes testing.

(32) corticotomy (specialized oral surgery procedure associated with orthodontics).

(33) antigen or antibody testing.

(34) counseling for the control and prevention of adverse oral, behavioral and systemic health effects associated with high-risk substance use.

(35) services for implants (prosthetic appliances placed into or on the bone of the upper or lower jaw to retain or support dental prosthesis), their removal or other associated procedures.
(This exclusion applies to Members in Year 1).